ENERGY REGULATORY COMMISSION
APPROVED FOR POSTING
www.erc.gov.ph

Republic of the Philippines
ENERGY REGULATORY COMMISSION
Pasig City

RESOLUTION NO. 01, SERIES OF 2024

A RESOLUTION ADOPTING THE LIFTING OF SUSPENSION OF THE COLLECTION OF FEED-IN TARIFF ALLOWANCE (FIT-ALL)

WHEREAS, pursuant to the mandate under Republic Act No. 9513 or the *Renewable Energy Act of 2008* (RE Law), on 12 July 2010, the Commission promulgated Resolution No. 16, Series of 2010 adopting the Feed-In Tariff Rules (FIT Rules), which was further amended through Resolution No. 15, Series of 2012 on 19 November 2012;

WHEREAS, Section 2.5 of the FIT Rules provides that consumers who are supplied with electricity through the distribution or transmission network shall pay a uniform charge for the power supplied under the FIT program referred to as the Feed-In Tariff Allowance or the FIT-All;

WHEREAS, on 16 December 2013, the ERC promulgated Resolution No. 24, Series of 2013, entitled *A Resolution Adopting the Guidelines on the Collection of the Feed-In Tariff Allowance (FIT-All) and the Disbursement of the FIT-All Fund*;

WHEREAS, a *Decision* dated 30 August 2022, entitled *In the Matter of the Application for the Approval of the Feed-In Tariff Allowance for the Calendar Year 2022 Pursuant to the Guidelines for Collection of the Feed-In Tariff Allowance and the Disbursement of the Feed-In Tariff Allowance Fund, with Prayer for Provisional Authority* under ERC Case No. 2021-061 RC was issued by the Commission, approving the implementation of the 2022 FIT-All rate of PhP0.0364/kWh effective on the next billing cycle;

WHEREAS, on 16 November 2022, the Commission issued Resolution No. 12, Series of 2022, entitled *A Resolution Adopting the Suspension of the Collection of Feed-In Tariff Allowance (FIT-All)*, directing Collection Agents to temporarily suspend the collection of FIT-All for a period of three (3) months from December 2022 until February 2023 billing months;

WHEREAS, on 22 February 2023, the Commission issued Resolution No. 02, Series of 2023, entitled *A Resolution Adopting the Extension of Suspension of the Collection of Feed-In Tariff Allowance (FIT-All)*, extending the temporary suspension in the collection of the FIT-All for a period of six (6) months, from March 2023 until August 2023 billing, unless lifted earlier by the Commission through a subsequent resolution;

WHEREAS, 04 August 2023, the Commission further extended the suspension in the collection of the FIT-All, through Resolution No. 11, Series of 2023, entitled *A Resolution Adopting the Extension of Suspension of the Collection of Feed-In Tariff Allowance (FIT-All),* starting September 2023 until otherwise lifted by the Commission in the event that the FIT-All Fund available shall be deemed insufficient to cover the monthly fund requirements;

WHEREAS, as of 05 January 2024, the FIT-All Fund has a remaining balance of Two Billion, Nine Hundred Eighty-Eight Million, Five Hundred Nine Thousand, One Hundred Fifty-Three Pesos and Fifty-Five Centavos (PhP2,988,509,153.55);

WHEREAS, the average monthly Cost Recovery Revenue (CRR) collection from January to November 2023 is One Billion, Six Hundred Forty-One Million, Four Hundred Thirty-Seven Thousand, Five Hundred Thirty Pesos and Seventy-Five Centavos (PhP1,641,437,530.75);

WHEREAS, the monthly average disbursement from the FIT-All Fund for the same period (January to November 2023) is Two Billion, Two Hundred Forty-Six Million, Three Hundred Thirty-Eight Thousand, Four Hundred Sixty-Nine Pesos and Ten Centavos (PhP2,246,338,469.10);

WHEREAS, as of 05 January 2024, the FIT-All fund balance, inclusive of the CRR collections in November 2023, is projected to be insufficient to cover the FIT billing requirements beginning the February 2024 customer billing month;

NOW, THEREFORE, the Commission hereby **RESOLVES** to **APPROVE** and **ADOPT** the lifting of the Suspension of the Collection of Feed-In Tariff Allowance (FIT-All), and resume the collection of FIT-All starting February 2024 customer billing.

This Resolution shall take effect immediately following its publication in a newspaper of general circulation or the Official Gazette, whichever comes earlier.

Let copies of this Resolution be furnished to the University of the Philippines Law Center – Office of the National Administrative Register (UPLC-ONAR), the Department of Energy, and all parties concerned.

Pasig City, 16 January 2024.

ERC
Office of the Chairperson and CEO
MCD2024-013549

MONALISA C. DIMALANTA
Chairperson and CEO

ALEXIS M. LUMBATAN
Commissioner

CATHERINE P. MACEDA
Commissioner

FLORESINDA G. BALDO-DIGAL
Commissioner

MARKO ROMEO L. FUENTES
Commissioner

MOS-RED: JBC/ SOM